

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA

*In the matter of an application for
Orders in the nature of Writs of
Certiorari and Prohibition under Article
140 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.*

C.A. (Writ) No. 318 / 2023

Wickramasingha Arachchige Mohan
Sanathkumara Saparamadu
Trustee – Somawathie Saparamadu Trust
71/2, Horton Place,
Colombo 7.

Petitioner

Vs.

1. Chandrasiri Kannangara
Chairman – Board of Inquiry on the
Somawathie Saparamadu Trust,
National Secretariat for Non –
Governmental Organizations,
15th Floor, ‘Suhurupaya’,
Battaramulla.
2. K. L. Inoj Perera
Member - Board of Inquiry on the
Somawathie Saparamadu Trust,
National Secretariat for Non –
Governmental Organizations,
15th Floor, ‘Suhurupaya’,
Battaramulla.

3. U. W. De Silva

Member - Board of Inquiry on the
Somawathie Saparamadu Trust,
National Secretariat for Non –
Governmental Organizations,
15th Floor, ‘Suhurupaya’ ,
Battaramulla.

4. L. K. Muhandiramge

Secretary - Board of Inquiry on the
Somawathie Saparamadu Trust,
National Secretariat for Non –
Governmental Organizations,
15th Floor, ‘Suhurupaya’ ,
Battaramulla.

5. Tiran Alles

Minister of Public Security,
14th Floor, ‘Suhurupaya’ ,
Battaramulla.

5A Hon. Ananda Wijepala

Minister of Public Security,
14th Floor, ‘Suhurupaya’ ,
Battaramulla.

6. P. V. Gunatillake

Secretary,
Minister of Public Security,
14th Floor, ‘Suhurupaya’ ,
Battaramulla.

6A Ravi Seneviratne

Secretary,
Minister of Public Security,
14th Floor, 'Suhurupaya',
Battaramulla.

7. Sanjeeva Wimalagunaratne

Director General,
National Secretariat for Non –
Governmental Organizations,
15th Floor, 'Suhurupaya',
Battaramulla.

8. Wickramasingha Arachchige Kassapa

Devamitta Saparamadu
250/7, High-level Road,
Kirulapona, Colombo 6.

9. Marja Van Leeuwan

10. Saskia Jolande Pahud de Mortanges –
Kroes

*Both at Sticing Weesshuis,
Meer En Bosalaan 106, 2554 GA
Den Haag,
Netherlands.*

Respondents

Before : **Hon. Rohantha Abeysuriya PC, J.(P/CA)**

: **Hon. K. Priyantha Fernando, J.(CA)**

Counsel : Kuvera de Zoysa, P.C. with Kevin Dias instructed by
G.G. Arulpragasam for the Petitioner.

Zuhri Zain, D.S.G. with Navinda Pathirage, S.C. for the
1st to 7th Respondents.

Senany Dayaratne with Nishadi Wickramasinge, Janani
Abeywickrama and Maheshika Bandara for the 8th
Respondent.

Faiszer Musthapha, P.C. with Ridmi Beneragama for
the 9th and 10th Respondents.

Written Submissions on : 10.03.2026 for the Petitioner.

13.03.2026 for the 8th Respondent.

Supported on : 09.02.2026

Decided on : 07.05.2026

K. Priyantha Fernando, J. (CA)

1. The Petitioner instituted the present application by Petition dated 12th June 2023 seeking, inter alia, Writs of Certiorari to quash the decisions, directives, and charges contained in document “P19” and the proceedings of the inquiry conducted by the 1st to 3rd Respondents against the Somawathie Saparamadu Trust (hereinafter referred to as “SST”) and/or the Petitioner, as well as Writs of Prohibition preventing 1st to 7th Respondents from conducting or continuing such inquiry.

2. An interim order staying all proceedings had been granted in the first instance. Furthermore, on 9th February 2026, the Attorney General informed Court that **1st to 3rd Respondents had resigned and that no new panel of inquirers had been appointed.** The Petitioner thereafter had sought an extension of the interim relief, which the 8th Respondent opposed. This Court then directed both parties to file written submissions, resulting in the present synopsis.

FACTUAL MATRIX:

3. The Court observed that the genesis of the matter lay in a complaint lodged by the 8th Respondent with the CID on 28th February 2014 alleging misappropriation of SST funds. The CID investigation, supervised by the Magistrate's Court of Nugegoda, had concluded without adverse findings against the Petitioner. Instead, one A.D.S. Wickrama, an employee tasked with handling SST finances, had been indicted in the High Court of Colombo for criminal breach of trust involving Rs. 10,446,477. The Petitioner maintained that he had no involvement in Wickrama's acts.
4. Simultaneously, the 8th Respondent had lodged an identical complaint with the NGO Secretariat, leading to inquiries under the Voluntary Social Service Organizations Act. The Petitioner alleged that these inquiries had been contrived and biased, influenced by the 8th Respondent, including the appointment of Mr. Ajith Kumara, a close associate of the 8th Respondent, to the Board of Inquiry. The Petitioner had challenged these inquiries in CA/WRT/448/15 and CA/WRT/229/18. The Court of Appeal in 2020 had directed disclosure of complaints and statements prior to recommencement of inquiry, affirming the Petitioner's right to respond and participate.

5. Despite these directions, on 11th April 2023, the Petitioner received a “Charge Sheet” (marked P19) alleging personal financial misappropriation. The Petitioner contended that this document is *ultra vires* as the Voluntary Social Service Organizations Act, which empowered a Board of Inquiry only to inquire into and report on organizations, not to charge individuals. The notice had also violated Regulation 7(1)(b) by providing only seven days’ notice instead of the statutorily required fourteen days.
6. The Petitioner further submitted that the inquiry had been tainted with *mala fides*, bias, reliance on potentially forged documents, and exclusion of the Petitioner from the key hearings. It was emphasized that the subject matter overlapped with the pending High Court indictment, thereby rendering the Board’s proceedings an abuse of process and prejudicial to ongoing judicial proceedings.

POSITION OF THE PETITIONER:

7. The Petitioner contended that that there had been jurisdictional overreach in the instant matter. The issuance of the Charge Sheet (P19) had been *ultra vires* and in contravention to the Voluntary Social Service Organizations Act and its Regulations. Furthermore, the Board of Inquiry had been a fact finding administrative body with no statutory authority to prosecute or charge individuals.
8. The Petitioner further contended that the inquiry and the manner in which it was conducted was a violation of natural justice. The inquiry had been arbitrary, unreasonable, and procedurally improper. The Petitioner had been denied adequate notice, documentary evidence, and participation rights, amounting to a violation of natural justice. It was

contended that not only was there a violation of the principles of natural justice, but an abuse of process. The Petitioner submitted that the subject matter had overlapped with the criminal indictment for which a case was already pending before the High Court. The Board's attempt to record evidence from the same witnesses had constituted a parallel proceeding, risking conflicting findings and witness interference, thereby amounting to an abuse of process.

9. The Petitioner also specifically pleaded *mala fide* and bias. It was argued that the inquiry had been contrived, influenced by the 8th Respondent, and designed to target the Petitioner personally rather than investigate the SST. The reliance on photocopies of documents of dubious origin, potentially forged, underscored the sham nature of the proceedings.
10. Finally, the Petitioner argued that Writs of *Certiorari* and *Prohibition* were the appropriate remedies to quash *ultra vires* decisions and prevent future unlawful acts. The Petitioner submitted that as the balance of convenience lies in his favor, a failure to extend the interim order would subject him to irreparable harm through a biased and unauthorized prosecution, rendering the final relief nugatory.
11. The Petitioner primarily prayed for the following relief:
 - Writs of *Certiorari* to quash the Charge Sheet (P19) and the impugned inquiry proceedings;
 - Writs of *Prohibition* to prevent Respondents 1–7 from continuing the inquiry; and
 - Extension of the interim order until final determination of the application, to safeguard his rights and prevent irreparable prejudice.

12. In totality, the Petitioner submitted that the inquiry and Charge Sheet were *ultra vires*, *mala fide*, and an abuse of process. The continuation of such proceedings would have undermined the rule of law and prejudiced pending judicial proceedings. Accordingly, the Petitioner prayed for the extension of the interim order until final determination of the application.

POSITION OF THE 8TH RESPONDENT:

13. The Respondent contended that the Petitioner, being a trustee of the Somawathie Saparamadu Trust (SST), has raised allegations of lack of jurisdiction, inconsistency with statutory provisions, violation of natural justice, bias, *mala fides*, and irregularity of notices and proceedings. The Respondent denied these allegations insofar as they implicate him and argued that the affairs of the SST have long been subject to sustained litigation, criminal investigations, and indictments, including proceedings before the Magistrate's Courts of Nugegoda and Galle, as well as writ applications CA/WRT/448/2015 and CA/WRT/229/2018.

14. The Respondent submitted that the interim order dated 13th June 2023, restraining the 1st to 3rd Respondents from proceeding with the inquiry, was personal to those office holders. The Respondent argued that since the Chairman had resigned, the Board as constituted ceased to exist, and therefore the interim order had lost its factual basis. The Respondent contended that the order cannot bind a future Board yet to be constituted, nor operate in a vacuum detached from its original foundation. He further submitted that the continuation

of such restraint would be unwarranted, especially in light of documentary material revealing serious irregularities in the financial administration of the SST.

15. The Respondent argued that indictments and statements recorded by the Financial Crimes Investigation Division demonstrate misappropriation of funds amounting to Rs. 10,446,477.00 /- by an employee, with the Petitioner's involvement as approving officer of cheques. He submitted that police investigations before the Magistrate's Court of Nugegoda revealed fabricated bills purportedly issued by vendors, while deposits made with Desano Investments Limited, a dormant family company unauthorized to accept deposits, further evidenced irregularities. The Respondent contended that these materials underscore the necessity of a proper inquiry into the affairs of the SST.
16. The Respondent further argued that the Petitioner's challenge to the charge sheet marked P19 is untenable, as the Court of Appeal in CA/WRT/229/2018 had already considered a substantially similar charge sheet (P16) and found no fault with it, observing that it was merely a synopsis of the complaint. He submitted that the Court had expressly directed that the inquiry be commenced and concluded expeditiously, but the present *ex parte* stay order has frustrated that direction for nearly six years.
17. In law, the Respondent contended that interim orders are intended to preserve the *status quo* and cannot operate indefinitely or against non-existent entities. The Respondent relied on the authority of Duwearatchi v. Vincent Perera, Weerasooriya v. Sidambaram Chetty [1984] 2 Sri L.R 94, to argue that interim relief depends on necessity, balance of convenience, and prevention of irreparable injury. The Respondent submitted that cessation of the interim order will not render nugatory any

final relief, nor cause irreparable injury, and that the balance of convenience favours vacating the order. It was further argued that judicial certainty requires that interim restraints be directed only against named parties, and cannot extend by implication to future Boards not before Court.

18. Accordingly, the Respondent submitted that the interim order dated 13th June 2023, having been issued *ex parte* against specific individuals, cannot survive the cessation of that Board, and ought to be vacated or declared to have ceased to operate.

ANALYSIS:

19. It is common ground that 1st to 3rd Respondents have resigned from their positions and that the Minister under whose preview the Secretariat of Non-Governmental Organizations comes has not taken steps as of date to appoint a fresh panel of inquirers in out of whom a board of inquiry would be appointed in terms of the Voluntary Social Service Organizations (Registration and Supervision) Act No. 31 of 1980 (as amended).

20. The central question before this Court is whether the interim order directed against specifically named office holders can survive the cessation of their office and bind a future statutory body not yet constituted. This should be considered in light of the statutory framework governing the constitution and functioning of a Board of Inquiry under the Voluntary Social Service Organizations (Registration and Supervision) Act No. 31 of 1980.

21. Section 10 and 11 of the Act provide the legal foundation for the appointment and constitution of a Board of Inquiry. The relevant provision read as follows:

“10. Where, in respect of a voluntary organization registered under this Act, any allegation of fraud, or misappropriation is made by any person, the Minister may refer such matter to a Board of Inquiry.

11. (1) The Minister may appoint a Panel consisting of six persons of standing who are not public officers.

(2) The Minister may, for the purpose of this Act, constitute a Board of Inquiry or Boards of Inquiry, each consisting of three members chosen from the Panel. The Minister may nominate one member to be the Chairman of a Board of Inquiry.

(3) The members of a Board of Inquiry shall be paid such remuneration as may be determined by the Minister in consultation with the Minister in charge of the subject of Finance.”.

22. Having outlined the statutory nature of the Board of Inquiry, it becomes necessary to consider the legal principles governing the grant and continuation of interim stay orders. The governing principle relating to interim stay orders has been enunciated in [1992] 2 Sri L.R. by Gunawardena J., as follows:

“It is important to note here that, when this Court grants interim relief by way of a stay order, it does not expect the parties to take steps which would substantially alter the rights of the parties before Court, as such Orders are issued, more to ensure that status quo is maintained between the parties, till the application is finally determined”.

23. Furthermore, the nature and scope of the discretion underlying the grant of interim stay orders has been considered by Seneviratne J in *Duwearachchi and Another v. Vincent*

Perera and Others, wherein His Lordship has referred to the observations of Bertram, C.J. in Weerasooriya v. Sidambaram Chetty 8 C.W.R 238 as follows:

“the interests of justice therefore required that a stay order be made as an interim measure. It would not be correct to judge such stay orders in the same strict manner as final orders. Interim orders by their very nature must depend a great deal on a judge’s opinion as to the necessity for interim action.”

24. In the instant case, interim order has been issued to preserve the *status quo* between the parties until the application was supported and determined, but not intended to suspend statutory powers in the abstract nor to operate indefinitely. Upon the resignation of the Chairman, the Board as then constituted has ceased to function. Consequently, the very *status quo* which this Court intended to preserve is no longer in existence.

25. It is important to note that the interim orders depend fundamentally on necessity, and when the circumstances that justified interim intervention have altered or ceased, the order cannot continue divorced from its factual basis.

26. In the present case, the interim order dated 13.06.2023 reads as follows: *“In the circumstances, the Court is of the view that an order should be issued in terms of clause 2 (1) of the Court of Appeal Rules to maintain the status quo. Further, court directs that the 1st, 2nd, and 3rd Respondents not to proceed with the inquiry fixed on 14th and 16th of June until the petitioner would support this application.”*

27. The plain reading of the above interim order makes it manifest that the restraint operates only against the 1st, 2nd and 3rd Respondents personally. It does not refer to the Board of

Inquiry as a juristic body, nor does it extend to successors, assigns, office holders, or any future reconstituted Board.

28. It was strenuously contended by the learned President's Counsel for the Respondents that an order of Court cannot be extended by implication or inference beyond its express terms and such certainty is wholly absent in respect of any newly constituted Board. The interim order has been issued to preserve the *status quo* between the parties as they then stood.

29. It is common ground that the Board against whom the restraint operated has ceased to exist by reason of the resignation of its Chairman. Moreover, the two of the main reliefs in the prayers (d) and (e) are against the 1st, 2nd and 3rd Respondents who are no longer constitute Board of Inquiry since there is no Board is in existence. The prayer (d) is to grant a Writ of *Certiorari* quashing the proceedings of the inquiry conducted by the 1st to 3rd Respondents against the Petitioner; Prayer (e) is to grant a Writ of *Prohibition* preventing any of the 1st to 3rd Respondents from conducting or continuing with an inquiry. Since there is no longer any Board of Inquiry is in existence, the Petitioner is no way affected or prejudiced by not extending Interim Order prayed for in prayer (g) of the Petition. Thus, the balance of convenience favours the Petitioner. In fact, the interim order granted on 13th June 2023 has lapsed from the time of cessation of the Board of inquiry.

30. For the above circumstances, it is my considered view that until and unless the Minister appoints three new members constituting a Board of Inquiry, the question of extending

the interim order does not arise as it (the interim order) stands dissolved/ vacated at the point of cessation of the Board of Inquiry.

31. Accordingly, the application of the Petitioner is refused and no order is made with regard to costs.

Judge of the Court of Appeal

Hon. Rohantha Abeyesuriya PC, J.(P/CA)

I agree.

President of the Court of Appeal